

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Kaitlin Campbell	Team: Squad #13	CCRB Case #: 201709023	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 10/31/2017 9:28 PM	Location of Incident: 4th Avenue and Shore Road	Precinct: 68	18 Mo. SOL 4/30/2019	EO SOL 4/30/2019	
Date/Time CV Reported Wed, 11/01/2017 9:13 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 11/01/2017 9:13 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Hassan Gheith	07404	938557	068 PCT
2. POM Alexander Caruso	09320	956497	068 PCT
3. An officer			068 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Hassan Gheith	Abuse: Police Officer Hassan Gheith stopped § 87(2)(b)	
B.POM Alexander Caruso	Abuse: Police Officer Alexander Caruso stopped § 87(2)(b)	
C. An officer	Abuse: An officer stopped § 87(2)(b)	
D.POM Hassan Gheith	Abuse: Police Officer Hassan Gheith frisked § 87(2)(b)	
E.POM Hassan Gheith	Abuse: Police Officer Hassan Gheith searched § 87(2)(b) Ansenon.	
F. An officer	Abuse: An officer searched § 87(2)(b)	
G.POM Hassan Gheith	Abuse: Police Officer Hassan Gheith issued an improper summons to § 87(2)(b)	
§ 87(4-b), § 87(2)(g)		

Case Summary

On November 1, 2017, § 87(2)(b) called the CCRB and filed this complaint.

On October 31, 2017, at approximately 9:30 p.m., § 87(2)(b) was sitting on a bench in Shore Road Park, at 4th Avenue and Shore Road in Brooklyn, when Police Officers Hassan Gheith and Alexander Caruso of the 68th Precinct, along with a third officer who was not identified, stopped him (**Allegations A and B: Abuse of Authority, § 87(2)(g)** (**Allegation C: Abuse of Authority, § 87(2)(g)**)). PO Gheith frisked § 87(2)(b) (**Allegation D: Abuse of Authority, § 87(2)(g)**). PO Gheith and the third officer searched § 87(2)(b) (**Allegations E: Abuse of Authority, § 87(2)(g)** (**Allegation F: Abuse of Authority, § 87(2)(g)**)). PO Gheith issued an improper summons to § 87(2)(b) for being in the park after it closed, but the park was in fact open (**Allegation G: Abuse of Authority, § 87(2)(g)**). The officers got in their car and drove away.

§ 87(4-b), § 87(2)(g)

The investigation did not find video footage of this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Hassan Gheith stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Alexander Caruso stopped § 87(2)(b)

According to § 87(2)(b) he had been sitting on the bench alone beneath a working streetlight for about an hour and a half when PO Gheith, PO Caruso, and the unidentified officer pulled up beside him in an unmarked car and got out. There was no one else in the park at the time. People walked by earlier but § 87(2)(b) did not interact with them. § 87(2)(b) said he was not smoking, dealing drugs, or committing any crimes he knew of. § 87(2)(b) did not know what the park rules were regarding closing time and had not seen any signs posted with the park's closing time. He had a bottle of cologne and a package of cigars in an interior jacket pocket; his phone in his front pants pocket; keys, a pen, and a lighter in his other front pants pocket; and his wallet in his back pants pocket. § 87(2)(b) did not believe that any of these items, except maybe his phone or wallet, created any bulges underneath his clothing.

§ 87(2)(b) said PO Gheith, PO Caruso, and the unidentified officer immediately asked § 87(2)(b) if he was with anyone, if he was meeting anyone, if he was smoking or using any drugs, and if he was doing a "deal." § 87(2)(b) told the officers he was by himself, was not meeting anyone, and was not using any drugs. PO Gheith issued him a summons for being in the park after closing.

The time on the summons was listed as 9:28 p.m. (Board Review 01). According to a sign posted on an outer fence, Shore Road Park closes at 1:00 a.m. (Board Review 02).

According to PO Gheith and PO Caruso, they were driving through Shore Road Park as part of an anti-crime post and were not responding to any specific calls or addressing any specific conditions. PO Caruso was the driver, PO Gheith did not remember where he sat, and both officers denied that a third officer was involved.

PO Gheith said the officers had been in the park for about two minutes when they saw § 87(2)(b) sitting on the bench alone. PO Gheith and PO Caruso both said they planned on approaching § 87(2)(b) to issue him a summons for being in the park after closing because they both thought the park closed at dusk. Both officers said they did not have any other reason to

approach § 87(2)(b) and that they did not suspect him of any crimes, of smoking marijuana, or of carrying any weapons.

Patrol Guide Procedure 212-11 states that a stop may be conducted only when an officer has an individualized reasonable suspicion that the person stopped has committed, is committing, or is about to commit a crime (Board Review 03).

§ 87(2)(g)

Allegation (D) Abuse of Authority: Police Officer Hassan Gheith frisked § 87(2)(b)

Allegation (E) Abuse of Authority: Police Officer Hassan Gheith searched § 87(2)(b) Ansenon.

According to § 87(2)(b) after the officers asked him about whether he was doing a “deal,” he asked them if they were “police” and they told him they were NYPD officers. PO Gheith then patted § 87(2)(b) down over his clothing. PO Gheith and the unidentified officer opened § 87(2)(b)’s jacket, felt inside his interior pocket, and asked him what was in the pocket. § 87(2)(b) told the officers it was a bottle of cologne, and the unidentified officer removed the bottle of cologne from the pocket. PO Gheith and the unidentified officer then reached inside the front pocket of § 87(2)(b)’s hooded sweatshirt and inside all of his pants pockets. § 87(2)(b) said the officers did not ask him whether they could search him before they began patting him down and going into his pockets.

PO Gheith and PO Caruso both denied frisking or searching § 87(2)(b) and both denied that any other officer frisked or searched § 87(2)(b).

Patrol Guide Procedure 212-11 states that an officer may frisk a person if the officer has reasonable suspicion that the person may be armed and dangerous. Where the frisk reveals an object that the officer reasonably suspects may be a weapon, the officer may only search those interior portions of the stopped person’s clothing to remove the weapon (Board Review 03).

§ 87(2)(g)

Allegation (C) Abuse of Authority: An officer stopped § 87(2)(b)

Allegation (F) Abuse of Authority: An officer searched § 87(2)(b)

§ 87(2)(b) described the third officer with PO Gheith and PO Caruso as a 30- to 40-year-old, 5’11” tall, white man with an average build. He could not describe the officer’s hair. Sergeant Andrew Mastrande of the 68th Precinct was originally identified as the subject officer because, as a 42-year-old, 5’10” tall, 220-pound white man, he matched § 87(2)(b)’s description, and because Sgt. Mastrande was the anti-crime sergeant for tour 3 on October 31, 2017. However, when Sgt. Mastrande came to the CCRB for his mediation appointment with § 87(2)(b), § 87(2)(b) said he never interacted with him and Sgt. Mastrande said he never interacted with § 87(2)(b). The case was therefore returned to the investigation unit to determine the third officer with PO Gheith and PO Caruso.

§ 87(2)(g)

summons to § 87(2)(b)

It is undisputed that PO Gheith wrote § 87(2)(b)

The law citation PO Gheith wrote on the summons is Section 103, subsection A2 of the NYC Parks Rules, which states: “Whenever a threat to public health or safety exists in any park resulting from any natural cause, explosion, accident, or any other cause, or by riot or unlawful assembly or activity, the Commissioner may close the park or any part thereof to the public for such duration as he deems necessary to ensure the safety and well-being of the public” (Board Review 01)(Board Review 05).

PO Gheith was shown a copy of the summons he issued § 87(2)(b)

§ 87(2)(g)

§ 87(4-b), § 87(2)
(c)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- PO Gheith has been a member of service for 12 and has been a subject in four CCRB complaints and 17 allegations, of which two were substantiated:
 - Case #201702427 involved substantiated allegations of strip-searches against PO Gheith. The Board recommended charges and there is no penalty by the NYPD listed.
- § 87(2)(g)

Mediation, Civil and Criminal Histories

- On January 5, 2018, this case was sent to mediation and on February 13, 2018 the case was returned to investigation as the complaint was no longer eligible for mediation because one of the officers was not identified.
- The undersigned investigator submitted an online FOIL request to the NYC Comptroller on March 20, 2018 to determine whether a Notice of Claim was filed about this case. The response will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 13

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date

